

STATE OF INDIANA
IN THE {courtName} COURT
COUNTY OF {originalExpungementCounty}
CAUSE NO. {originalExpungementCauseNumber}
COUNTY OF [COUNTY TO BE CONFIRMED]

STATE OF INDIANA,

v.

JAMIE Q. SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

SUPPLEMENTAL PETITION PURSUANT TO I.C. 35-38-9-9(l)

STATUTORY AUTHORITY

I.C. 35-38-9-9(l) — Where the chapter is amended after a person's expungement was granted in a way that provides greater relief, the person may petition the court that granted the expungement, succinctly setting forth the relief sought. If the court finds the petitioner was granted relief before the amendment and is otherwise entitled to the relief the amendment provides, it shall grant the supplemental petition consistent with the amendment.

I.C. 35-38-9-0.6(c) — Recorded on the track as authority for this mechanism. The registry does not state what this subsection supplies beyond listing it; no gloss is invented here.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Court of Common Pleas of [COUNTY TO BE CONFIRMED] County, Pennsylvania, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in [COUNTY TO BE CONFIRMED] County, Pennsylvania.

II. PARTIES

3. Petitioner is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, IN 00000.

4. Petitioner has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. Petitioner was charged with [CHARGE DESCRIPTION TO BE CONFIRMED] by [ARRESTING AGENCY TO BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: [DISPOSITION TO BE CONFIRMED].
[DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Petitioner may be eligible for expungement on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the expungement of the records covered by the original expungement order identified in this petition in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to grant relief consistent with the amendment all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, IN 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Follow the ordinary Trial Rules service on the prosecuting attorney. Confirm local practice.

I certify that on _____, I served a copy of this Petition upon the prosecuting attorney at the following address:

[PROSECUTING ATTORNEY ADDRESS - PARTICIPANT SUPPLIES; NEVER PREFILLED]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JAMIE Q. SAMPLE

Date: _____

PROPOSED ORDER

STATE OF INDIANA
IN THE {courtName} COURT
COUNTY OF {originalExpungementCounty}
CAUSE NO. {originalExpungementCauseNumber}
COUNTY OF [COUNTY TO BE CONFIRMED]

STATE OF INDIANA v. JAMIE Q. SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Pennsylvania State Police, [COUNTY TO BE CONFIRMED] County Court of Common Pleas, [ARRESTING AGENCY], and all other criminal justice agencies with records pertaining to this matter are hereby directed to grant relief consistent with the amendment all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Certified copy of the original expungement order (participant obtains from the clerk of the granting court; LegalEase does not inspect it)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.